

The motion to quash is moot. Defense counsel has withdrawn the subpoena (on 9-3-26) after the subpoena service vendor mistakenly added paperwork from an unrelated matter to the subpoena. No justiciable controversy remains. This court cannot grant relief concerning a subpoena that is no longer outstanding. (*Wilson & Wilson v. City Council* (2011) 191 Cal.App.4th 1559, 1574.)

4.

CASE #	CASE NAME	HEARING NAME
CVRI2504963	RODRIGUEZ vs FERGUSON CAPITAL GROUP, INC.	MOTION TO BE RELIEVED AS COUNSEL FOR FERGUSON CAPITAL GROUP, INC.

Tentative Ruling:

GRANT

5.

CASE #	CASE NAME	HEARING NAME
CVRI2507429	IZQUIERDO vs FCA US LLC	MOTION TO COMPEL INITIAL DISCLOSURES PURSUANT TO CALIFORNIA CODE OF CIVIL PROCEDURE § 871.26 AND REQUEST FOR MONETARY SANCTIONS

Tentative Ruling:

GRANT the motion. Defendant to produce the documents required under CCP § 871.26(h)(6) through (10), (12), and (13) within 20 days.

Section § 871.26 does not condition mandatory disclosure on the entry of a protective order. Therefore, Defendant is to produce those documents that fall within the ambit of § 871.26(h). These include; warranty transaction history records, auto pay claims, the Complaint, Cause, and Correction Data, Trouble Not Found claims, module reset warranty transactions, warranty policies and procedure manuals, service manual materials, PDI records, recalls, TSBs, and ISBs. Section § 871.26(h) does not require the manufacturer to produce every record returned by a VIN search, does not require an export from every system, or a disclosure of the search methodology. The fact that a record is indexed by VIN does not automatically make it a mandatory initial disclosure. Defendant fails to present facts to show that any privilege applies, including any trade secret privilege. Defendant does not provide a privilege log.

No Sanctions.